Cherry Creek School District #5
Office of Risk Management
ESC at Metro Point
4610 S. Ulster St, Suite 1001
Denver, CO 80237
FAX: 720-554-5904
Email: riskmanagement@cherrycreekschools.org

Dedicated to Excellence
Cherry Creek Schools

Cherry Creek School District #5

Vendor/Partner Insurance Requirements

Standard Insurance Limit of Liability Requirements

1. Commercial General Liability $1M per occurrence with a $2M aggregate limit
   - CCSD must be named as an additional insured by endorsement on the policy
   - Coverage must be on an occurrence made policy, not a claims made policy

2. Errors & Omissions Liability $1M per occurrence/ $2M aggregate (see list below)

3. Commercial Automobile Liability $1M combined single limit

4. Workers' Compensation Statutory Limits
   Employers Liability $1,000,000 each accident, $1,000,000 policy limit, $1,000,000 each employee
   - Policy endorsement waiving subrogation rights against the District

5. Professional Liability (District NOT named as additional insured) (see list below)

All insurance must be provided by an insurance company with an A.M. Best rating of nothing less than an A- rating.

Claims Made Insurance Policies (Note – should be applicable only to E&O liability, professional liability, medical malpractice, and cyber liability). If any of the required policies provide claims-made coverage:

a. The Retroactive Date must be shown, and must be before the contract date or beginning of work.
b. Insurance must be maintained, and evidence of insurance must be provided for at least five (5) years after completion of the contract of work.
c. If coverage is canceled or non-renewed and not replaced with another claims-made policy form with a Retroactive Date prior to the contract effective date, the vendor or partner must purchase "extended reporting" coverage for a minimum of five (5) years after completion of work.

Key Discretionary Considerations - Contractual Insurance Coverage

- Vendors with direct contact with students shall provide an endorsement showing the Commercial General Liability insurance policy including coverage for Sexual Abuse & Molestation (SAM coverage)

- Professional Liability Insurance - All contracts where professional services require specialized

designation, license, etc. (see below)

List of licensed occupations/services requiring Professional Liability or Errors and Omissions insurance

Professional liability may have a different meaning when it relates to insurance rather than a "type" of the contract. To determine if you should require professional liability insurance, ask yourself:

1. Is the professional licensed or certified (i.e., architect, consultant, nurse, attorney, engineer, etc.)?

2. Will the information developed by the professional be used in a decision-making process within the institution that could create a liability (i.e., such as clinical trials, etc.)? If the answer is yes to either of these questions, professional liability insurance should be required.

The list below is not all inclusive, there may be other providers, vendors, or individuals that require a licensure to provide services that should be included.

Higher Risk Category - Minimum Insurance Requirements - $3M per occurrence/ $3M+ aggregate

- Accountants
- Attorneys
- Computer software design
- Environmental remediation
- Insurance/Risk Management Consultants or Brokers
- Medical professionals (nurses, CNA's, therapists, physicians, etc.) – May be Medical Malpractice insurance.

Medium Risk Category - Minimum Insurance Requirements - $2M per occurrence/ $2M aggregate

- Architects
- Engineers
- Project Management (construction, design)

Common Vendor / Partner - Questions

1. Vendor/partner asks whether required insurance is necessary.
   Answer: **Yes**, it is required. Vendor/partners are not allowed on site unless proof of insurance is provided, (i.e., certificate of insurance).
2. Is naming District CCSD an "additional insured", by endorsement, required?
   Answer: **Yes**, for Commercial General Liability insurance coverage. Exceptions - Professional Liability/Errors & Omissions or Medical Malpractice or otherwise noted.
   Cost of required coverage / limits are too high?
   Answer: **These are the District's required** insurance and contractual requirements. They have been vetted with our insurers and insurance brokers to protect the District's fiscal interests, resources, and taxpayer funds.
3. Specific coverage requirements are not readily available?
   Answer: **Unlikely**, but if so, ask vendor/partner to provide specific information in writing from their insurance broker.
4. Specified coverage only available via "non-standard" endorsements?
   Answer: **Unlikely**, but if so, ask vendor/partner to provide specific information in writing from their insurance broker.
5. Vendor/partner declines to comply with the District insurance requirements?
   Answer: **They are not a good fit** to partner with, or do business with, the District.

PTO/PTCO Insurance Recommendations

1. Commercial General Liability $1M per occurrence with a $2M aggregate limit
    - CCSD must be named as an additional insured, by endorsement, on the policy
    - Coverage must be on an occurrence made policy, not a claims made policy

2. Accident Medical Coverage $25,000 per person and $50,000 per accident for bodily injury and death.

3. Directors and Officers (D&O) $1M per occurrence limit

4. Crime Insurance $25,000 per occurrence limit

CERTIFICATE OF INSURANCE REQUIREMENTS

Vendors/Companies providing services or using District facilities must provide proof of insurance through a Certificate of Insurance as follows:

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All insurance must be provided by an insurance company with an A.M. Best rating of nothing less than an A- rating.

CERTIFICATE HOLDER:
CHERRY CREEK SCHOOL DISTRICT #5
ATTN: RISK MANAGEMENT
4610 S. Ulster St. Suite 1001
Denver, CO 80237

You may email or fax the certificate to Cherry Creek School District Risk Management at: riskmanagement@cherrycreekschools.org or FAX: 720-554-5904. Any questions, please email us.

Revised 02.27.2026